

in sons at twenty-one, and in daughters at twenty-one or marriage, and the settlement contained powers of maintenance and advancement out of the portions after the death of the parents, or in their lifetime with their consent. There were three younger children, but two of them died in infancy; and the question was whether the one who attained twenty-one was entitled to the 8,000*l.* or the 15,000*l.* Sir J. Stuart said, "It seems clear enough that if there should be three or more younger children, during the infancy of the three children the trusts for raising the 15,000*l.* were to have an operation and might be resorted to for the purposes of advancement and maintenance. If so, how can anything which has happened since the three younger children were born, reduce the trust for raising 15,000*l.* to a trust for raising 8,000*l.* only which was to be raised expressly, and in terms, in the event of there being only one younger child?" and the surviving portionist was declared entitled to the 15,000*l.*

3. **Interest.** — The right to interest and the rate of it, and the time from which it is to be calculated, should all be specified in the settlement, but in the absence of any express direction, a portion like any other sum of money charged on land, will carry interest with it by implication from the time when the capital ought to have been raised (*b*), and this interest will in England be at 4 per cent. (*c*); and in Ireland at 5 per cent. (*d*). But if the settlement while it is silent as to the interest on the portions, expressly and carefully and with all necessary circumstantiality provides for the interest on all the other charges, the presumption arises that interest on the portions was intentionally excluded, and the Court considers the general rule as inapplicable (*e*).

* 4. **Out of rents.** — In the rare case where the portions are to be raised not by sale or mortgage out of

(*b*) *Evelyn v. Evelyn*, 2 P. W. 669, per Cur.; *Hall v. Carter*, 2 Atk. 358, per Cur.; *Earl Pomfret v. Lord Windsor*, 2 Ves. sen. 487, per Cur.

(*c*) *Young v. Waterpark*, 13 Sim. 199; affirmed 15 L. J. N. S. Ch. 63; [*Balfour v. Cooper*, 23 Ch. D. 472.]

(*d*) *Purcell v. Purcell*, 1 Conn. & Laws. 371; [*Balfour v. Cooper*, 23 Ch. D. 472;] and see *Young v. Waterpark*, 13 Sim. 199; *Denny v. Denny*, 14 L. T. N. S. 854.

(*e*) *Clayton v. Earl of Glengall*, 1 Dr. & W. 1; S. C. 1 Conn. & Laws. 311.